



CHAPTER cxxiv.

An Act to confirm certain Pilotage Orders made by the Board of Trade under the Pilotage Act 1913 relating to the Pilotage Districts of the Clyde Dundee Fraserburgh and Peterhead. [9th August 1920.]

WHEREAS the Board of Trade have made the Pilotage Orders set forth in the schedule hereto under the provisions of the Pilotage Act 1913 but the same do not take effect unless and until confirmed by Parliament:

And whereas it is expedient that the said Pilotage Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Pilotage Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

2. This Act may be cited as the Pilotage Orders Confirmation (No. 3) Act 1920.

[Ch. cxxiv.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 3) Act, 1920.

A.D. 1920.

SCHEDULE of Orders.

1. THE CLYDE.
2. DUNDEE.

3. FRASERBURGH.
4. PETERHEAD.

The Clyde.

THE CLYDE PILOTAGE ORDER.

Pilotage
District.

1.—(1) There shall be established a Pilotage District which shall be called the Clyde Pilotage District and is hereinafter referred to as "the Pilotage District."

(2) The limits of the Pilotage District shall be as follows:—

The river and firth of Clyde from Albert Bridge Glasgow to an imaginary straight line drawn due east and west from the coast of Ayreshire to the east coast of Kintyre Argyllshire in line with the southernmost point of the island of Little Cumbrae including the sea lochs and channels and all public docks and public basins within those limits.

Limit of
compulsory
pilotage.

2. Pilotage shall be compulsory in the portion of the Pilotage District situated to the east of an imaginary straight line drawn from Kempock Point Gourock to Kilcreggan Pier.

Pilotage
Authority.

3.—(1) There shall be established for the Pilotage District a Pilotage Authority which shall be called the Clyde Pilotage Authority (hereinafter referred to as "the Authority") and shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Order.

(2) The Authority shall consist of seventeen members to be appointed and elected as follows:—

(a) Seven persons appointed by the Trustees of the Clyde Navigation of whom one shall be the Chairman of those trustees ex officio and not less than two shall be shipowners or persons having experience of shipping;

(b) Four persons appointed by the Trustees of the Port and Harbours of Greenock of whom one shall be the Chairman of those trustees ex officio and at least one shall be a shipowner or person having experience of shipping;

(c) The Chairman of the Dumbarton Harbour Board;

(d) The Chairman of the Trustees of Port Glasgow Harbour;

(e) The Chairman of the Trustees of Rothesay Harbour; and

(f) Three persons elected in manner hereinafter provided by the pilots licensed for the Pilotage District (hereinafter referred to as the "licensed pilots") from among persons who either are or have been licensed pilots for the Pilotage District.

(3) The members of the Authority shall be appointed and elected respectively in manner in the First Schedule hereto provided.

[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. cxxiv.]
(No. 3) Act, 1920.

4.—(1) The annual meeting of the Authority shall be held in Glasgow and Greenock alternately in the month of November in each year and the first annual meeting shall be held in Glasgow as soon as may be after the Authority shall be constituted. A special meeting of the Authority shall be held in Glasgow as soon as practicable after the Authority is constituted. Subsequent special meetings of the Authority may be called at such times and places as the Authority or the Chairman of the Authority may fix. The Chairman of the Authority shall call a meeting of the Authority at any time on a requisition in writing addressed to him by any three members of the Authority stating the object of the meeting.

A.D. 1920.
The Clyde.
Proceedings
of Authority.

(2) Meetings of the Authority shall except in cases of urgency be called by notice in writing not less than three clear days before the date fixed for such meetings.

(3) The Chairman of the Trustees of the Clyde Navigation and the Chairman of the Trustees of the Port and Harbours of Greenock shall respectively be in alternate years Chairman of the Authority. The first chairman shall be the Chairman of the Trustees of the Clyde Navigation. The Authority may annually elect a deputy-chairman who shall be one of their own number and shall hold office for one year. In the event of the absence of both the chairman and deputy-chairman at any meeting the members of the Authority present at such meeting shall elect a chairman for that meeting from among the members present.

(4) Every question at a meeting of the Authority shall be decided by a majority of the votes of the members of the Authority present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(5) At all meetings of the Authority seven members shall form a quorum.

(6) No member of the Authority shall take part in any proceedings of the Authority relating to any question affecting himself personally.

(7) Subject to the provisions of this Order the Authority may regulate their own procedure.

(8) No act or proceeding of the Authority shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.

5. Members of the Authority shall hold office until such time as their successors may be appointed or elected respectively.

Period of
office.

6. Members of the Authority going out of office may be re-appointed or re-elected respectively.

Retiring mem-
bers eligible for
re-appointment
or re-election.

7. The Authority may appoint an executive committee which shall include three representatives appointed as being shipowners or

Pilotage
Committee.

[Ch. cxxiv.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 3) Act, 1920.

- A.D. 1920. persons having experience of shipping and the three representatives
The Clyde. elected by the licensed pilots to whom the Authority may delegate
such of their powers and duties as they may from time to time think
expedient without requiring decisions of such committee to be con-
firmed by the Authority but the Executive Committee shall report
their proceedings to the Authority The Authority shall nominate the
Chairman of the Executive Committee and fix the quorum.
- Proceedings of Com- 8. If the Authority appoint an executive committee the provisions
mittee. of section 4 subsections 4 6 7 and 8 of this Order shall apply to the
proceedings of such Committee the word "Committee" being in each
case substituted for the word "Authority."
- Investment 9. The Authority may invest their funds (including the Pilots'
powers. Benefit Funds) in the bonds of the Trustees of the Clyde Navigation.
- Power to 10. The Authority may acquire own hire build renew maintain
acquire ves- and work vessels for the purposes of this Order and may at their
sels &c. discretion alter sell or exchange any such vessels.
- Transfer of 11. From and after the commencement of this Order all the
powers. powers rights funds and properties of the Pilot Board constituted by
the Clyde Navigation (Consolidation) Act 1858 and the Acts amending
the same shall be and are hereby transferred to and vested in the
Authority Provided that until the Authority shall have been constituted
under the provisions of this Order the members for the time being of
the said Pilot Board shall be the Authority for the purposes of this
Order as though they had been appointed and elected under such
provisions.
- Transfer of 12. From and after the commencement of this Order and without
powers under prejudice to the general powers transferred to the Authority by the
Clyde Navi- last preceding section the powers to make byelaws and regulations
gation (Con- conferred by section 139 (Pilot Board to make byelaws for purposes
solidation) herein defined) of the Clyde Navigation (Consolidation) Act 1858 upon
Act 1858. the Pilot Board constituted by that Act shall so far as relates to the
Pilotage District be and is hereby transferred to the Authority and
sections 140 to 142 of the said Act shall apply to all byelaws and
regulations made under the provisions of this section.
- Transfer of 13. From and after the commencement of this Order and without
powers under prejudice to the general powers transferred to the Authority by the
Clyde Navi- last preceding section but one of this Order the powers conferred by
gation Act sections 10 to 21 of the Clyde Navigation Act 1887 upon the Pilot
1887. Board constituted by the Clyde Navigation (Consolidation) Act 1858
shall (so far as relates to the Pilotage District) be and are hereby
transferred to the Authority and the provisions of those sections shall
apply as if they were embodied in this Order with the substitution of
the Authority for the said Pilot Board.

[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. cxxiv.]
(No. 3) Act, 1920.

14. The Authority may make byelaws providing for the grant of deep-sea certificates certifying that persons to whom such certificates are granted are qualified to act as pilots of ships for any part of the sea or channels outside the district of any other Pilotage Authority constituted under the Pilotage Act 1913. Provided that a pilot holding such a certificate shall not be entitled to supersede any other person as pilot of a ship.

A.D. 1920.

The Clyde.
Deep-sea
certificates.

15. From and after the commencement of this Order the enactments specified in the Second Schedule hereto shall cease to have effect and shall for the purposes of section 59 of the Pilotage Act 1913 be deemed to be superseded.

Repeal of
enactments.

16. This Order may be cited as the Clyde Pilotage Order 1920 and shall commence and come into operation on the First day of October 1920.

Short title
and com-
mencement
of Order.

FIRST SCHEDULE.

With respect to the appointment and election of members of the Authority the following provisions shall have effect (that is to say):—

1. The appointed members shall be appointed by the Trustees of the Clyde Navigation and the Trustees of the Port and Harbours of Greenock respectively in the month of November in each year.

2.—(1) The elected members shall be elected at meetings of the licensed pilots which shall take place in the month of November in each year.

(2) Each such meeting shall be called by a notice in writing sent to each licensed pilot at his last known place of abode by the Secretary of the Authority five clear days at least before the day fixed for the meeting.

(3) The Lord Provost of Glasgow for the time being or a person nominated by him shall be the chairman of the meeting and the returning officer.

(4) Every licensed pilot shall be entitled to attend the meeting and take part and vote in the election.

(5) Every licensed pilots' candidate for membership of the Authority shall be nominated and seconded by licensed pilots present at the meeting and if the number of candidates nominated does not exceed the number of persons to be elected the candidates so nominated shall be deemed to be duly elected but if the number of persons nominated exceeds the number to be elected the election shall be decided by the majority of votes of the licensed pilots present in person or by proxy.

[Ch. cxxiv.] *Pilotage Orders Confirmation* [10 & 11 Geo. 5.]
(No. 3) Act, 1920.

A.D. 1920.

The Clyde.

(6) Every licensed pilot present in person or by proxy at any election under these provisions shall be entitled to as many votes as there are persons to be elected and shall give not more than one vote for any one candidate.

(7) Every licensed pilot not present at any such election may by writing under his hand appoint another licensed pilot as proxy to represent and vote for him. Provided that all instruments in writing appointing such proxy shall be lodged with the Secretary to the Authority not less than forty-eight hours before the time appointed for the meeting.

(8) In the event of two or more candidates at any election having the same number of votes the chairman of the meeting shall have a casting vote.

(9) As soon as may be after the election the chairman of the meeting shall certify in writing to the Secretary of the Authority the names of the persons elected under these provisions as members of the Authority and every person so certified to be elected shall be deemed duly elected.

(10) The costs charges and expenses of and preliminary and incidental to elections shall be paid by the Authority out of the Pilotage Fund.

3. In the event of any vacancy among the appointed or elected members of the Authority arising otherwise than by effluxion of time the vacancy shall be filled as soon as may be thereafter in the manner prescribed for the annual appointment or election but any person so appointed or elected shall only hold office until the next annual appointment or election.

SECOND SCHEDULE.

ENACTMENTS SUPERSEDED.

Sections 128 to 138 of the Clyde Navigation (Consolidation) Act 1858.

The Clyde Pilotage Order 1890.

The Pilotage Order Confirmation (No. 1) Act 1890.

Section 50 of the Clyde Navigation Act 1899.

[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. cxxiv.]
(No. 3) Act, 1920.

DUNDEE PILOTAGE ORDER.

A.D. 1920.

1. The limits of the Dundee Pilotage District (hereinafter referred to as "the Pilotage District") shall be the waters of the sea and River Tay bounded seawards by a line drawn at a radius of three miles from the Tay fairway buoy and landwards by a line drawn from Craig Pier on the north side of the River Tay to Newport Pier on the south side including all tidal harbours docks and locks leading thereto or therefrom.

Dundee.
Pilotage
District.

2. The Pilotage Authority for the Pilotage District (hereinafter referred to as "the Authority") shall be the Dundee Harbour Trustees as constituted by the Dundee Harbour and Tay Ferries Acts 1911 and 1912 (hereinafter referred to as "the Acts of 1911 and 1912").

Pilotage
Authority.

3. Pilotage shall be compulsory within the Pilotage District.

Pilotage to be
compulsory.

4.—(1) There shall be constituted a Pilotage Committee (hereinafter referred to as "the Committee") of the Authority consisting of members appointed and elected as follows:—

Pilotage
Committee.

(a) Nine members appointed by the Authority from among their own members of whom one shall be nominated as chairman and of whom not less than three shall be persons entitled to vote as shipowners at the election of Trustees under the Acts of 1911 and 1912;

(b) Three members elected in manner hereinafter provided by the pilots licensed for the Pilotage District (hereinafter referred to as the "licensed pilots") from among persons who either are or have been licensed pilots for the district.

(2) The members of the Committee shall be appointed and elected in manner in the schedule hereto provided.

(3) Until the appointment and election of the Committee in manner in the Schedule hereto provided the Authority may delegate to any Committee from among their own members or otherwise as they think fit all or any of their powers or duties under the Pilotage Act 1913.

5. The Authority may delegate to the Committee any of their powers or duties under the Pilotage Act 1913. The decisions of the Committee on questions so delegated shall not require confirmation by the Authority but the Committee shall report their proceedings to the Authority.

Powers of
Pilotage
Committee.

6.—(1) The Chairman if present shall preside at every meeting of the Committee. If the Chairman is absent at any meeting such other member as the members then present choose shall preside.

Proceedings
of Com-
mittee.

(2) Every question at a meeting of the Committee shall be decided by a majority of votes of the members of the Committee present and

[Ch. cxxiv.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 3) *Act, 1920.*

- A.D. 1920. voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.
Dundee.
- (3) The quorum of the Committee shall be five.
- (4) No member of the Committee shall take part in any proceedings of the Committee relating to any question affecting himself personally.
- (5) Subject to the provisions of this Order the Committee may regulate their own procedure.
- (6) No act or proceeding of the Committee shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.
- Period of office. 7. Members of the Committee shall hold office until such time as their successors may be appointed or elected respectively.
- Retiring members eligible for re-appointment or re-election. 8. Members of the Committee going out of office may be re-appointed or re-elected respectively.
- Separate accounts to be kept. 9. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connexion with the pilotage service.
- Power to provide or arrange for supply of pilot boats. 10. The Authority may from time to time if they think fit purchase hire or build and equip maintain and work or enter into agreements or arrangements with any person for the supply use maintenance and working of such boats or vessels as in the opinion of the Authority may be required for the efficient working of the pilotage service.
- Repeal. 11. Part XI. of the Dundee Harbour and Tay Ferries Consolidation Act 1911 and any other enactment or Order relating to pilotage in the Pilotage District shall cease to have effect and shall for the purposes of section 59 of the Pilotage Act 1913 be deemed to be superseded.
- Date of commencement. 12. This Order shall come into force on the day when the Act confirming this Order is passed.
- Short title. 13. This Order may be cited as the Dundee Pilotage Order 1920.

SCHEDULE.

With respect to the appointment and election of the Committee the following provisions shall have effect (that is to say):—

1. The persons to be appointed by the Authority as members of the Committee shall be chosen at the first meeting of the Authority held after their election in the month of November 1920 and at the first meeting of the Authority held after their election in the month of November in every third year thereafter.

[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. cxxiv.]
(No. 3) Act, 1920.

2.—(1) The members to be elected by the licensed pilots (hereinafter referred to as the "pilot members") shall be elected at meetings of the licensed pilots which shall take place in the month of November 1920 and in the month of November in every third year thereafter at a time and place to be fixed by the Authority or failing them by the Board of Trade and advertised ten days at least before the day appointed for such election in one or more of the newspapers published and circulating in the town of Dundee.

A.D. 1920.

Dundee.

(2) The clerk to the Authority shall be the chairman of the meeting and the returning officer and shall preside at and regulate proceedings at such meeting.

(3) Every licensed pilot shall be entitled to attend or to be represented at the meeting and to take part and vote in each election of pilot members thereat but this provision is not to authorise attendance to the prejudice of the pilot service.

(4) Candidates for the office of pilot member shall at such meeting be nominated and seconded by licensed pilots and if the number of persons so nominated does not exceed the number of persons to be elected the persons so nominated shall be deemed to be duly elected but if the number of persons nominated exceeds the number to be elected the election shall be decided by the majority of the licensed pilots present or represented at the meeting.

(5) Any licensed pilot not present at any election meeting may by writing under his hand appoint any licensed pilot as proxy to represent him Provided that all instruments in writing appointing such proxy shall be lodged with the Authority not later than the day preceding the day of the meeting.

(6) Every licensed pilot present or represented at any election shall be entitled to as many votes as there are persons to be elected but shall not give more than one vote for any one candidate.

(7) The chairman of the meeting shall as soon as may be after the election certify in writing to the Authority the name or names of the person or persons elected to be pilot members and all such persons shall thereupon become members of the Committee.

(8) In case there is a failure to elect a pilot member at the first or any subsequent election the Board of Trade may appoint any licensed pilot to fill the vacancy and such person shall hold office as though he had been elected under the provisions of subsections 1 to 7 of this section.

(9) The costs charges and expenses of and preliminary and incidental to the election of pilot members shall be paid by the Authority.

[Ch. cxxiv.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 3) Act, 1920.

A.D. 1920.

Dundee.

3. In the event of any vacancy among the appointed or elected members of the Committee arising otherwise than by effluxion of time the vacancy shall be filled as soon as may be thereafter in the manner prescribed for the triennial appointment or election.

Fraserburgh.

FRASERBURGH PILOTAGE ORDER.

Pilotage
District.

1. The limits of the Fraserburgh Pilotage District (hereinafter referred to as "the Pilotage District") shall be the waters of the harbour of Fraserburgh and the part of the sea within a distance of two nautical miles from the entrance to the harbour.

Pilotage
Authority.

2. The Pilotage Authority for the Pilotage District (hereinafter referred to as "the Authority") shall be the Fraserburgh Harbour Commissioners as constituted by the Fraserburgh Harbour Act 1878.

Pilotage to be
compulsory.

3. Pilotage shall be compulsory within the Pilotage District.

Pilotage
Committee.

4. The Authority may appoint a Pilotage Committee from among their own members and may delegate to such Committee any of their powers or duties under the Pilotage Act 1913. The decisions of the Pilotage Committee on questions so delegated shall not require confirmation by the Authority but the Pilotage Committee shall report their proceedings to the Authority. The Authority shall appoint a chairman and fix the quorum of the Pilotage Committee.

Pilotage
accounts.

5. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connexion with the pilotage service.

Repeal.

6. Sections 112 to 120 of the Fraserburgh Harbour Act 1878 and any other enactment or Order relating to pilotage in the Pilotage District shall cease to have effect and shall for the purposes of section 59 of the Pilotage Act 1913 be deemed to be superseded.

Date of com-
mencement
of Order.

7. This Order shall come into force on the day when the Act confirming this Order is passed.

Short title.

8. This Order may be cited as the Fraserburgh Pilotage Order 1920.

[10 & 11 GEO. 5.] *Pilotage Orders Confirmation* [Ch. cxxiv.]
(No. 3) Act, 1920.

PETERHEAD PILOTAGE ORDER.

A.D. 1920.

Peterhead.
Pilotage
District.

1. The limits of the Peterhead Pilotage District (hereinafter referred to as "the Pilotage District") shall be the waters of the harbour of Peterhead and the part of the sea northward of Buchanness included within (1) a line drawn in a north-easterly direction from the eastern extremity of the Rock of Dunby (near Port Errol) through the eastern extremity of the promontory of Buchanness and (2) a line drawn in a south-easterly direction from the southern extremity of Mormond Hill through the farmhouse of Kinloch till it intersects the last-mentioned line.

2. The Pilotage Authority for the Pilotage District (hereinafter referred to as "the Authority") shall be the Peterhead Harbour Trustees as constituted by the Peterhead Harbour Act of 1873.

Pilotage
Authority.

3. Pilotage shall be compulsory within the Pilotage District.

Pilotage to be
compulsory.

4. The Authority shall at the first meeting after their annual election in nineteen hundred and twenty and in each succeeding year appoint a Pilotage Committee (hereinafter referred to as "the Committee") from among their own members and may delegate to the Committee any of their powers or duties under the Pilotage Act 1913. The decisions of the Committee on questions so delegated shall not require confirmation by the Authority but the Committee shall report their proceedings to the Authority. The Authority shall appoint a chairman and fix the quorum of the Committee.

Pilotage
Committee.

5.—(1) The Chairman if present shall preside at every meeting of the Committee. If the Chairman is absent at any meeting such other member as the members then present choose shall preside.

Proceedings
of Com-
mittee.

(2) Every question at a meeting of the Committee shall be decided by a majority of votes of the members of the Committee present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(3) No member of the Committee shall take part in any proceedings of the Committee relating to any question affecting himself personally.

(4) Subject to the provisions of this Order the Committee may regulate their own procedure.

(5) No act or proceeding of the Committee shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.

6. Members of the Committee shall hold office from the date of their appointment until such time as their successors may be appointed.

Period of
office.

[Ch. cxxiv.] *Pilotage Orders Confirmation* [10 & 11 GEO. 5.]
(No. 3) Act, 1920.

A.D. 1920.

Peterhead.
Retiring mem-
bers eligible for
re-appointment.

7. Members of the Committee going out of office may be re-appointed.

Pilotage
accounts.

8. Separate accounts shall be kept by the Authority of all moneys received and expended by them in connexion with the Pilotage service.

Repeal.

9. Sections 67 to 74 of the Peterhead Harbour Act 1873 and any other enactment or Order relating to Pilotage in the Pilotage District shall cease to have effect and shall for the purposes of section 59 of the Pilotage Act 1913 be deemed to be superseded.

Date of com-
mencement
of Order.

10. This Order shall come into force on the day when the Act confirming this Order is passed.

Short title.

11. This Order may be cited as the Peterhead Pilotage Order 1920.

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